



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2022: elections; July primary; curing; observers

KOLODIN FLOOR AMENDMENT

1. Decreases, from within 10 to within 7 calendar days after a general election that includes an election for a federal office, the time frame in which a provisional ballot must be compared to the signature roster for the precinct in which the voter was listed.
2. Clarifies that a provisional ballot must be compared to the signature roster for the precinct in which the voter was listed within five calendar days after the election, rather than five business days, for any election other than one that includes a federal election.
3. Adjusts the day on which primary elections are required to be held from the last Tuesday in July to the second-to-last Tuesday in July and reflects that adjustment in statute where election days are outlined as not legal holidays.
4. Amends, for candidate elections, the required day for primary or first elections in even-numbered years to be held to the second-to-last Tuesday in July, rather than the last Tuesday in July.
5. Clarifies that non-candidate elections, including special and recall elections, may be held on the second-to-last Tuesday in July, rather than the last Tuesday in July, in addition to other dates outlined by statute.
6. Removes a provision from the underlying bill that specified county recorders or officers in charge of an election must allow signatures to be corrected not later than the fifth calendar day, rather than the fifth business day, after a primary, general or special election that includes a federal office.
7. Clarifies, as session law, that a person who collects signatures for the 2026 primary election and uses a petition, nomination paper form or electronic petition before, on or after the effective date of the act with the former primary election date of August 4, 2026 on the form or petition may lawfully submit those signatures for the 2026 primary election to be held July 21, 2026.
8. States, as session law, that signatures submitted for the primary election with the August 4, 2026, primary election date on the form or petition cannot be

GREY GARTIN

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(602) 926-3848

ruled invalid due to any clerical error by election officials in the preparation of the 2026 electronic petition.

9. Prohibits, as session law, a filing officer from rejecting petitions collected under the August 4, 2026, primary election date and states this applies to the online signature collection system provided by the Secretary of State.
10. Clarifies, as session law, that any city, town or county initiative petition that is circulated before, on or after the effective date of the act and that is on a petition form that includes the former primary election date of August 4, 2026 may lawfully submit those petitions and signatures for the primary election to be held on July 21, 2026.
11. States, as session law, that signatures collected for a city, town or county initiative petition with the former primary election date of August 4, 2026 and that otherwise comply with legal requirements are deemed to be as valid as signatures collected on an initiative petition with the newly designated primary election date of July 21, 2026 and may not be ruled invalid due solely to the changed primary election date.
12. Clarifies, as session law, that a prospective primary election candidate collecting signatures does not need to file a new or amended statement of interest based on the change in 2026 primary election date.
13. Requires, as session law, that any election item that was duly called by a city, town or county for the August 4, 2026, primary election date must be placed on the ballot for the newly designated primary date of July 21, 2026.
14. Adds a legislative intent clause.

KOLODIN SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2022

I move the following SUBSTITUTE amendment to the FEDERALISM, MILITARY AFFAIRS & ELECTIONS
Committee Amendment to
HOUSE BILL 2022 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or
previously enacted session law.
[Green underlining in brackets] indicates text added to new session law
or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute
or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute,
previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 16-135, Arizona Revised Statutes, is amended
3 to read:

4 16-135. Change of residence from one address to another

5 A. An elector who is correcting the residence address shown on the
6 elector's voter registration record shall reregister with the new
7 residence address or correct the voter registration record as prescribed
8 by this section.

9 B. An elector who moves from the address at which the elector is
10 registered to another address within the same county and who fails to
11 notify the county recorder of the change of address before the date of an
12 election shall be allowed to correct the voter registration records at the
13 appropriate polling place for the voter's new address. The voter shall
14 present a form of identification that includes the voter's given name and
15 surname and the voter's complete residence address that is located within
16 the precinct for the voter's new residence address. The voter shall
17 affirm in writing the new residence address and shall be allowed to vote a
18 provisional ballot.

19 C. When an elector completes voting a provisional ballot, the
20 election official shall place the ballot in an envelope for provisional
21 ballots and shall deposit the envelope in the ballot box designated for
22 provisional ballots.

23 D. Within ~~[ten]~~ [SEVEN] calendar days after a general election that
24 includes an election for a federal office and within five ~~[business]~~
25 [CALENDAR] days after any other election, a provisional ballot shall be
26 compared to the signature roster for the precinct in which the voter was

1 listed and if the voter's signature does not appear on the signature
2 roster for that election and if there is no record of that voter having
3 voted early for that election, the provisional ballot shall be processed.
4 If the signature roster or early ballot information indicates that the
5 person did vote in that election, the provisional ballot for that person
6 shall remain unopened and shall not be counted.

7 E. An elector may also correct the residence address on the
8 elector's voter registration record by requesting the address change on a
9 written request for an early ballot that is submitted pursuant to section
10 16-542 and that contains all of the following:

- 11 1. A request to change the voter registration record.
- 12 2. The elector's new residence address.
- 13 3. An affirmation that the information is true and correct.
- 14 4. The elector's signature.>>

15 Sec. 2. Section 16-201, Arizona Revised Statutes, is amended to
16 read:

17 16-201. Primary elections

18 A primary election shall be held on the ~~first~~ [SECOND TO] LAST
19 Tuesday in ~~August~~ JULY in any year in which a general election or special
20 election is held and at which candidates for public office are to be
21 elected.

22 Sec. 3. Section 16-204, Arizona Revised Statutes, is amended to
23 read:

24 16-204. Declaration of statewide concern; consolidated
25 election dates; definition

26 A. The legislature finds and determines that for the purposes of
27 increasing voter participation and for decreasing the costs to the
28 taxpayers it is a matter of statewide concern that all elections in this
29 state be conducted on a limited number of days and, therefore, the
30 legislature finds and declares that the holding of all elections on
31 certain specific consolidated days is a matter of statewide concern. This
32 section preempts all local laws, ordinances and charter provisions to the
33 contrary.

34 B. For elections held before 2014 and notwithstanding any other law
35 or any charter or ordinance of any county, city or town to the contrary,
36 an election held for or on behalf of a county, city or town, a school
37 district, a community college district or special districts organized
38 pursuant to title 48, chapters 5, 6, 8, 10, 13 through 16 and 33 may only
39 be held on the following dates:

40 1. Except for regular elections for candidates in a city or town
41 with a population of one hundred seventy-five thousand or more persons,
42 all elections, including recall elections and special elections to fill
43 vacancies, shall be held on:

44 (a) The second Tuesday in March.

45 (b) The third Tuesday in May.

46 (c) The tenth Tuesday before the first Tuesday after the first
47 Monday in November.

1 (d) The first Tuesday after the first Monday in November.
2 Notwithstanding any other law, an election must be held on this date for
3 the approval of an obligation or other authorization requiring or
4 authorizing the assessment of secondary property taxes by a county, city,
5 town, school district, community college district or special taxing
6 district, except as provided by title 48.

7 2. For regular elections that are only for candidates in a city or
8 town with a population of one hundred seventy-five thousand or more
9 persons and not including recall elections and special elections to fill
10 vacancies in those cities or towns, elections shall be held on:

11 (a) The tenth Tuesday before the first Tuesday after the first
12 Monday in November.

13 (b) The first Tuesday after the first Monday in November.

14 C. For elections held before 2014, for any city or town, including
15 a charter city, that holds its regularly scheduled candidate elections in
16 even-numbered years pursuant to subsection B, paragraph 2 of this section,
17 the term of office for a member of the city council or for the office of
18 mayor begins on or after the second Tuesday in January in the year
19 following the election.

20 D. Subsections B and C of this section do not apply to an election
21 regarding a county or city charter committee or county or city charter
22 proposal that is conducted pursuant to article XIII, section 2 or 3 or
23 article XII, section 5, Constitution of Arizona.

24 E. Beginning with elections held in 2014 and later and
25 notwithstanding any other law or any charter or ordinance to the contrary,
26 a candidate election held for or on behalf of any political subdivision of
27 this state other than a special election to fill a vacancy or a recall
28 election may only be held on the following dates and only in even-numbered
29 years:

30 1. ~~Through 2019, the tenth Tuesday before the first Tuesday after~~
31 ~~the first Monday in November.~~ Beginning in ~~2020~~ 2026 and later, the
32 ~~election shall be held on the first~~ [SECOND TO] LAST Tuesday in ~~August~~
33 JULY. If the political subdivision holds a primary or first election and
34 a general or runoff election is either required or optional for that
35 political subdivision, the first election shall be held on this date,
36 without regard to whether the political subdivision designates the
37 election a primary election, a first election, a preliminary election or
38 any other descriptive term.

39 2. The first Tuesday after the first Monday in November. If the
40 political subdivision holds a general election or a runoff election, the
41 second election held shall be held on this date. If the political
42 subdivision holds only a single election and no preliminary or primary or
43 other election is ever held for the purpose of reducing the number of
44 candidates, or receiving a partisan nomination or designation or for any
45 other purpose for that political subdivision, the single election shall be
46 held on this date.

1 F. Beginning with elections held in 2014 and later that are not
2 candidate elections, an election held for or on behalf of any political
3 subdivision of this state, and including a special election to fill a
4 vacancy or a recall election, may only be held on the following dates:

5 1. The second Tuesday in March.

6 2. The third Tuesday in May.

7 3. ~~Through 2019, the tenth Tuesday before the first Tuesday after~~
8 ~~the first Monday in November.~~ Beginning in ~~2020~~ 2026 and later, the
9 ~~election shall be held on the first~~ [SECOND TO] LAST Tuesday in ~~August~~
10 JULY.

11 4. The first Tuesday after the first Monday in November.
12 Notwithstanding any other law, an election must be held on this date for
13 the approval of an obligation or other authorization requiring or
14 authorizing the assessment of secondary property taxes by a county, city,
15 town, school district, community college district or special taxing
16 district, except as provided by title 48. Notwithstanding any other law,
17 an election must be held on the date specified in this paragraph and only
18 in even-numbered years for the approval of or authorizing the assessment
19 of transaction privilege taxes by a county, city or town.

20 G. Notwithstanding any other law, for an election administered by a
21 county recorder or other officer in charge of elections on behalf of a
22 city, town or school district and that is an all mail ballot election for
23 that city, town or school district, the county recorder or other officer
24 in charge of elections may use a unified ballot format that combines all
25 of the issues applicable to the voters in the city, town or school
26 district requesting the all mail ballot election.

27 H. For the purposes of this section, "political subdivision" means
28 any governmental entity operating under the authority of this state and
29 governed by an elected body, including a city, town, county, school
30 district or community college district or any other district organized
31 under state law but not including a special taxing district.

32 Sec. 4. Section 16-206, Arizona Revised Statutes, is amended to
33 read:

34 16-206. Election day

35 A. The biennial primary election day on the ~~first~~ [SECOND TO] LAST
36 Tuesday in ~~August~~ JULY in the year the general election is held and the
37 biennial general election day on the first Tuesday after the first Monday
38 in November of every even-numbered year are not legal holidays.

39 B. Every public officer or employee is entitled to absence from
40 service or employment for the purpose of voting pursuant to section 16-402
41 on the biennial primary and general election days.

42 ~~<<Sec. 5. Section 16-550, Arizona Revised Statutes, is amended to~~
43 ~~read:~~

44 ~~16-550. Receipt of voter's ballot; cure period; tracking~~
45 ~~system~~

46 ~~A. Except for early ballots tabulated as prescribed in section~~
47 ~~16-579.02 or, beginning in 2026, received at a voting location after a~~

~~1 voter's identification is confirmed as prescribed by section 16-579,
2 subsection A, paragraph 4, on receipt of the envelope containing the early
3 ballot and the mail affidavit, the county recorder or other officer in
4 charge of elections shall compare the signature on the envelope with the
5 signature of the elector on the elector's registration record as
6 prescribed by section 16-550.01. If the signature is inconsistent with
7 the elector's signature on the elector's registration record, the county
8 recorder or other officer in charge of elections shall make reasonable
9 efforts to contact the voter, advise the voter of the inconsistent
10 signature and allow the voter to correct or the county to confirm the
11 inconsistent signature. The county recorder or other officer in charge of
12 elections shall allow signatures to be corrected not later than the fifth
13 business CALENDAR day after a primary, general or special election that
14 includes a federal office or the third business day after any other
15 election. If the election is a primary, general or special election that
16 includes a federal office and there are outstanding ballots that require
17 identification or ballot signatures to be corrected or confirmed, in
18 addition to the office's regular business hours, the county recorder's and
19 any city or town clerks' offices that have an agreement with a county to
20 be used as locations at which a voter may submit proof of identification
21 shall be open during regular business hours to allow for curing signatures
22 during the Friday and weekend before and the Friday and weekend after the
23 election. Regular business hours include at a minimum 8:00 a.m. until
24 5:00 p.m. If there are no ballots remaining that require identification
25 or signatures to be cured, the county recorder and city and town clerks
26 are not required to be open during the weekend. If the signature is
27 missing, the county recorder or other officer in charge of elections shall
28 make reasonable efforts to contact the elector, advise the elector of the
29 missing signature and allow the elector to add the elector's signature not
30 later than 7:00 p.m. on election day. If satisfied that the signatures
31 correspond, the recorder or other officer in charge of elections shall
32 hold the envelope containing the early ballot and the completed mail
33 affidavit unopened in accordance with the rules of the secretary of state.
34 Signatures that cannot be verified pursuant to section 16-550.01 or cured
35 pursuant to this section shall be rejected. If the ballot is a
36 conditional provisional ballot, the voter shall provide proof of
37 identification to the county recorder or other officer in charge of
38 elections not later than the fifth business day after a primary, general
39 or special election that includes a federal office or the third business
40 day after any other election. Beginning with the first missing or
41 mismatched signature that is identified after the period of early voting
42 begins through the Monday immediately preceding the election, the county
43 recorder or other officer in charge of elections shall submit daily to the
44 political parties that are qualified for continued representation on the
45 state ballot an updated list of all voters whose signatures are missing or
46 inconsistent with the voter's signature on the voter's registration
47 record. Beginning on the Wednesday immediately following the election~~

1 ~~through the end of the signature cure period after a primary, general or~~
2 ~~special election that includes a federal office, or the third business day~~
3 ~~after the election for any other election, the county recorder or other~~
4 ~~officer in charge of elections shall submit daily to the political parties~~
5 ~~that are qualified for continued representation on the state ballot an~~
6 ~~updated list of all voters whose signatures are inconsistent with the~~
7 ~~voter's signature on the voter's registration record and all voters who~~
8 ~~voted with a conditional provisional ballot. This list of voters whose~~
9 ~~signatures require curing shall include for those voters all voter~~
10 ~~information that is provided to the political parties that are qualified~~
11 ~~for continued representation on the state ballot as prescribed by section~~
12 ~~16-168.~~

13 ~~B. The recorder or other officer in charge of elections shall~~
14 ~~thereafter safely keep the mail affidavits and early ballots in the~~
15 ~~recorder's or other officer's office and may deliver them for tallying~~
16 ~~pursuant to section 16-551.~~

17 ~~C. Processing and tabulation of individual ballots may begin~~
18 ~~immediately after the envelope and completed mail affidavit are processed~~
19 ~~pursuant to this section and delivered to the early election board and~~
20 ~~shall continue without delay until completed. Until election day, the~~
21 ~~early election board and the county recorder or other officer in charge of~~
22 ~~elections shall:~~

23 ~~1. Not access an aggregated complete results file of early voting~~
24 ~~and vote by mail ballots that were processed and tabulated by the end of~~
25 ~~the early voting period.~~

26 ~~2. Not produce for internal or external use an aggregated results~~
27 ~~report or associated files of complete results.~~

28 ~~3. Only produce a partial results report or associated files if it~~
29 ~~is part of the internal preparation for the hand count pursuant to section~~
30 ~~16-602 or for the logic and accuracy testing required pursuant to section~~
31 ~~16-449.~~

32 ~~4. Not publicly release complete or partial results, whether for~~
33 ~~internal or external use, until all precincts have reported or one hour~~
34 ~~after the closing of the polls on election day, whichever is earlier.~~

35 ~~D. The county recorder or other officer in charge of elections~~
36 ~~shall post on its website within forty-eight hours after all ballot~~
37 ~~tabulation is complete all system log files and other similar files from~~
38 ~~the election management system that verify compliance with subsection C of~~
39 ~~this section.~~

40 ~~E. The county recorder shall send a list of all voters who were~~
41 ~~issued early ballots to the election board of the precinct in which the~~
42 ~~voter is registered.~~

43 ~~F. For a county that uses early ballots, the county recorder or~~
44 ~~other officer in charge of elections shall provide an early ballot~~
45 ~~tracking system that indicates whether the voter's early ballot has been~~
46 ~~received and whether the early ballot has been verified and sent to be~~
47 ~~tabulated or rejected. The county recorder or other officer in charge of~~

1 ~~elections shall provide voters with access to the early ballot tracking~~
2 ~~system on the county's website.~~

3 ~~6. This section does not apply to:~~

4 ~~1. A special taxing district that is authorized pursuant to section~~
5 ~~16-191 to conduct its own elections.~~

6 ~~2. A special district mail ballot election that is conducted~~
7 ~~pursuant to article 8.1 of this chapter.>>~~

8 Sec. 5. Section 16-558.02, Arizona Revised Statutes, is amended to
9 read:

10 16-558.02. Replacement ballots; observers

11 A. The county recorder or other officer in charge of elections
12 shall determine a central location in the district and shall provide for a
13 ballot replacement center that is as near to that location as is
14 practicable for electors to obtain a replacement ballot or for an elector
15 who is listed as inactive to confirm or revise the elector's voter
16 registration information and receive a ballot. The location shall be open
17 from 6:00 a.m. until 7:00 p.m. of the day of the election. An elector may
18 obtain a replacement ballot until 7:00 p.m. on the day of the election on
19 presenting a signed, sworn statement that the ballot was lost, spoiled,
20 destroyed or not received.

21 B. The recorder or other officer in charge of elections shall keep
22 a record of each replacement ballot provided pursuant to this section.

23 C. If an elector to whom a replacement ballot is issued votes more
24 than once, only the first ballot received shall be counted.

25 D. FOR EACH BALLOT REPLACEMENT LOCATION, THE COUNTY CHAIRMAN OF
26 EACH PARTY MAY DESIGNATE BY WRITTEN APPOINTMENT ADDRESSED TO THE ELECTION
27 BOARD A PARTY REPRESENTATIVE AND ALTERNATES TO SERVE AS OBSERVERS. A
28 PARTY REPRESENTATIVE SHALL BE A RESIDENT OF THIS STATE AND REGISTERED TO
29 VOTE IN THIS STATE.

30 Sec. 6. Section 16-590, Arizona Revised Statutes, is amended to
31 read:

32 16-590. Appointment of challengers and party representatives

33 A. The county chairman of each party may DESIGNATE, for each
34 precinct OR LOCATION, by written appointment addressed to the election
35 board, ~~designate~~ a party agent or representative and alternates for a
36 polling place in the precinct AND AT ANY VOTING CENTER, INCLUDING AN
37 IN-PERSON EARLY VOTING LOCATION AND AN EMERGENCY VOTING LOCATION, who may
38 act as challengers for the party which appointed him.

39 B. At each voting place, one challenger for each political party
40 may be present and act, but ~~no~~ A challenger may NOT enter a voting booth
41 except to mark his ballot.

42 C. Not more than the number of party representatives for each party
43 ~~which~~ THAT were mutually agreed ~~upon~~ ON by each political party
44 represented on the ballot shall be in the ~~polling place~~ VOTING PLACE at
45 one time. If such agreement cannot be reached, the number of
46 representatives shall be limited to one in the ~~polling place~~ VOTING PLACE
47 at one time for each political party.

1 D. A challenger or party representative shall be a resident of this
2 state and registered to vote in this state.

3 Sec. 7. 2026 primary election; nomination petition forms;
4 local initiative petition forms; previous primary
5 election date

6 A. A person who desires to become a candidate at the 2026 primary
7 election, who collects signatures on a nomination petition [or nomination
8 paper] form[, including an electronic petition with signatures as
9 prescribed by section 16-316, 16-317 or 16-318, Arizona Revised Statutes,]
10 before[, on or after] the effective date of this act and who has used a
11 petition form that includes the former primary election date of August 4,
12 2026 may lawfully submit those signatures for the 2026 primary election to
13 be held on July ~~[28]~~ [21], 2026. Signatures that are collected with the
14 August 4, 2026 primary election date, that are submitted as prescribed in
15 this subsection and that otherwise comply with the requirements provided
16 by law are deemed to be as valid as signatures collected on a nomination
17 petition [or nomination paper] form[, including an electronic petition
18 with signatures as prescribed by section 16-316, 16-317 or 16-318, Arizona
19 Revised Statutes,] that complies with the newly designated primary
20 election date of July ~~[28]~~ [21], 2026 and shall not be ruled invalid due
21 solely to the changed date of the primary election [or for any clerical
22 error by an election official in the preparation of the electronic
23 petition. The filing officer shall not reject those nomination petitions,
24 nomination papers or signatures based solely on the date of the primary
25 election. This subsection applies to and includes nomination petitions,
26 nomination papers and signatures that are submitted through the secure
27 online signature collection system provided by the secretary of state].

28 B. Any city, town or county initiative petition that is circulated
29 before[, on or after] the effective date of this act and that is on a
30 petition form that includes the former 2026 primary election date of
31 August 4, 2026 may lawfully submit those petitions and signatures for the
32 primary election to be held on July ~~[28]~~ [21], 2026. Signatures that are
33 collected with the August 4, 2026 primary election date, that are
34 submitted as prescribed in this subsection and that otherwise comply with
35 the requirements provided by law are deemed to be as valid as signatures
36 collected on an initiative petition form that complies with the newly
37 designated primary election date of July ~~[28]~~ [21], 2026 and shall not be
38 ruled invalid due solely to the changed date of the primary election.
39 [The filing officer shall not reject those signatures or petitions based
40 solely on the date of the primary election.]

41 [C. This section does not require a person to file a new or amended
42 statement of interest based solely on the change in the 2026 primary
43 election date.]

1 <<Sec. 8. 2026 primary election date; city, town and county
2 matters

3 [Any election item that was duly called by a city, town or county
4 pursuant to section 16-226, Arizona Revised Statutes, for the August 4,
5 2026 primary election date shall be placed on the ballot for the newly
6 designated primary election date of July 21, 2026.]>>

7 <<Sec. 9. Legislative intent

8 [The legislature intends and finds that this act does not make
9 changes to the length of time during which voter signatures are allowed to
10 be cured and conditional provisional ballot voters are allowed to provide
11 proof of identification, and that Laws 2024, chapter 1, section 22, as
12 amended by Laws 2024, chapter 2, section 4, continues to apply to all
13 primary, general or special elections that include a federal office in
14 2026.]>>

15 Sec. 10. Emergency

16 This act is an emergency measure that is necessary to preserve the
17 public peace, health or safety and is operative immediately as provided by
18 law.

19 Enroll and engross to conform

20 Amend title to conform

ALEXANDER KOLODIN

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02/02/2026

10:20 AM

C: MR

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